

**IN THE DELHI STATE CONSUMER DISPUTES REDRESSAL
COMMISSION**

Date of Institution: 18.05.2026

Date of Hearing: 04.06.2026

Date of Decision: 10.08.2026

REVISION PETITION NO.52/2026

IN THE MATTER OF

- 1. J.K. KHARAB DEVELOPERS OPC PVT. LTD.**
THROUGH ITS DIRECTOR,
FLAT NO.84, SECTOR-11, POCKET -4,
DWARKA, NEW DELHI

- 2. ASHOK KUMAR**
DIRECTOR, J.K. KHARAB DEVELOPERS OPC PVT. LTD.
THROUGH ITS DIRECTOR,
FLAT NO.84, SECTOR-11, POCKET -4,
DWARKA, NEW DELHI

...PETITIONERS

**(Through: Mr. Pradeep Kumar Pathak, Advocate)
Through VC**

VERSUS

- 1. MANISH SHARMA,**
S/O SHRI VISHNU DUTT SHARMA,
R/O H-369, H-BLOCK, NANAKPURA,
NEW DELHI -110021.

- 2. MS. PARMJIT RAO,**
S/O LT. SHRI S.N. RAO,
RZ-20, VAISHALI MARG-I,
DABRI VILLAGE, NEW DELHI -110045

...RESPONDENTS

CORAM:

**HON'BLE JUSTICE SANGITA DHINGRA SEHGAL, PRESIDENT
HON'BLE MS. BIMLA KUMARI, MEMBER (FEMALE)**

PER:HON'BLE JUSTICE SANGITA DHINGRA SEHGAL, PRESIDENT

JUDGMENT

1. At the outset, we are of the considered view that issuance of notice to the Respondent is not required in the present Revision petition, as the challenge herein is confined to the procedural legality of the closure of right of Petitioners to file written statement, based on admitted facts emerging from the record itself, namely, the manner and address at which service was affected. Further, no adjudication on merits of the consumer complaint is being undertaken at this stage, and the relief sought merely restores the Petitioner's right of hearing before the District Commission. In view thereof, and as no prejudice is likely to be caused to the Respondents, notice to the Respondents are dispensed with.
2. The Petitioners have filed the present Revision Petition being aggrieved by the impugned order dated 24.03.2026 passed by the District Consumer Disputes Redressal Commission, South West in CC No.441/2025, whereby the right to file written version was struck off.
3. The challenge to the aforesaid order has been solely made by the Petitioner on the ground that although notice of the complaint was

served, however, the same was not properly served on 19.11.2025 with complete and legible copy of complaint and annexure. Thus, the service is not as per law.

4. It is fairly admitted by the Petitioners that the notice was delivered to the Petitioner on 19.11.2025, however, it is contended that such service cannot be construed as valid service, as the notice was not served with complete and legible copy of the complaint and annexures. It is further submitted that there was no deliberate or intentional default in appearance or filing of written version.
5. At the outset, it is clarified that the Petitioner has not disputed the factum of service per se, but has consistently maintained that the service was affected without complete and legible copy of the complaint and annexure.
6. Service of notice is not a mere technical formality; it must be meaningful, effective, and capable of conveying knowledge of proceedings to the opposite party.
7. Proceeding ex-parte and striking off the right to file written version is a serious procedural consequence and ought to be resorted to only after the forum is satisfied that the opposite party was duly and effectively served.
8. In the present case, the District Commission struck off the defence of the OPs, by observing as under:

“Complainant has filed postal receipt, tracking report and affidavit in support of proof of service to show that OP has been served on 19.11.2025.

Ld. Counsel for OP submitted that OP has not received copy of complaint with annexures which is refuted by Ld. Counsel for complainant. But till date OP has not filed any application in the Commission that reply was not prepared due to non-supply of copy of complaint and annexures.

OP has remained silent to this fact hence version of OP that OP has not received copy of complaint and annexures does not inspire confidence.

Reply has not been filed within 30 days which is extendable by 15 days from date of service as prescribed under Consumer Protection Act, 2019. OP has not file reply till date. Hence, defence of OP is struck off.”

9. The factum of service is not denied by the Petitioners and thus admittedly, the notice alongwith copy of the complaint was served upon the Petitioners on 19.11.2025. It is the case of the Petitioner that incomplete and illegible copy of summons, complaint and annexures were received by the Petitioner. However, perusal of record shows that the Petitioners neither approached the Complainant nor has filed any application before the District Commission seeking directions to the Complainant to provide legible copy of the complaint alongwith annexures. Further, the Petitioner has also failed to put forth any explanation why it did not take any action for obtaining the legible and complete copy of the complaint either from the Complainant, or from the District Commission. Thus, admittedly the Petitioner failed to act diligently and its approach towards the case is lackadaisical.

10. It is settled proposition that discretionary and equitable relief can be granted only to a litigant who has acted bona fide and with due diligence. A party guilty of negligence, inaction or lack of diligence cannot seek indulgence of the Court as a matter of right.
11. The relief sought by the Petitioner is discretionary in nature. The record reveals that the Petitioners failed to pursue the matter with due diligence and remained inactive for a considerable period. It is a settled proposition of law that a party guilty of negligence, inaction or lack of bona fides is not entitled to equitable relief. The law aids the vigilant and not those who sleep over their rights.
12. The record reveals that despite adequate time, the Petitioners failed to pursue the matter with the diligence expected of a litigant seeking relief. The judicial process cannot be permitted to be employed as a tool for prolonging litigation or delaying the culmination of proceedings. Hon'ble Supreme Court in ***Ramrameshwari Devi v. Nirmala Devi, (2011) 8 SCC 249***, while dealing with abuse of judicial process and delay in adjudication, observed as under:

"Unless courts ensure that wrongdoers are denied profit or undue benefit from frivolous litigation, it would be difficult to control unnecessary and uncalled for litigation. The courts have to ensure that there is no incentive or motive for uncalled for litigation. It is the bounden duty and obligation of the court to neutralize any unjust and/or undeserved benefit or advantage obtained by abusing the judicial process."

The Hon'ble Supreme Court further emphasized that courts must effectively curb delaying tactics and ensure that judicial proceedings

are not frustrated by litigants seeking to prolong disputes for extraneous reasons.

13. In ***State of Uttar Pradesh v. Amar Nath Yadav, (2014) 2 SCC 422***, the Hon'ble Supreme Court specifically deprecated dilatory conduct and observed that:

"Courts cannot encourage dilatory tactics and laxity in prosecution of proceedings."

14. The aforesaid observation squarely applies to the facts of the present case. The conduct of the Petitioners demonstrates not an isolated lapse but a persistent failure to prosecute the matter diligently.

15. In ***Basawaraj and Ors. v. The Spl. Land Acquisition Officer*** reported in ***AIR 2014 SC 746***, Hon'ble Supreme Court reiterated that a party who has not acted diligently or remained inactive cannot claim equity. The relevant paras of the aforesaid judgment are reproduced as under:-

"15. The law on the issue can be summarised to the effect that where a case has been presented in the court beyond limitation, the applicant has to explain the court as to what was the "sufficient cause" which means an adequate and enough reason which prevented him to approach the court within limitation. In case a party is found to be negligent, or for want of bona fide on his part in the facts and circumstances of the case, or found to have not acted diligently or remained inactive, there cannot be a justified ground to condone the delay. No court could be justified in condoning such an inordinate delay by imposing any condition whatsoever. The application is to be decided only within the parameters

laid down by this Court in regard to the condonation of delay. In case there was no sufficient cause to prevent a litigant to approach the court on time condoning the delay without any justification, putting any condition whatsoever, amounts to passing an order in violation of the statutory provisions and it tantamount to showing utter disregard to the legislature.”

16. Thus, a litigant who remains inactive and fails to take timely steps cannot seek indulgence of the Court as a matter of right. Reference may also be made to ***Balwant Singh (Dead) v. Jagdish Singh, (2010) 8 SCC 685***, wherein the Hon'ble Supreme Court held:

"Where negligence, inaction or lack of bona fides is imputable to a party, there cannot be a justified ground for condonation of delay."

17. The Court further emphasized that due diligence is a necessary precondition for grant of discretionary relief and that negligence cannot be equated with sufficient cause.
18. The cumulative effect of the aforesaid authorities is that a litigant adopting dilatory tactics and exhibiting laxity in prosecution is not entitled to equitable or discretionary relief. Judicial discretion is intended to advance justice and not to reward negligence, indifference, or calculated delay. Entertaining such conduct would defeat the principles of expeditious adjudication and undermine the sanctity of judicial proceedings.
19. In the present case, the Petitioners have failed to furnish any satisfactory explanation for not taking any action till 24.03.2026 after receiving the notice on 19.11.2025.

20. Consequently, no ground is made out for interfering with the impugned order. Accordingly, the Revision petition stands dismissed.
21. Application(s) pending, if any, stand disposed of in terms of the aforesaid judgment.
22. The judgment be uploaded forthwith on <https://e-jagriti.gov.in> portal for the perusal of the parties. A copy of this judgment be also sent to the parties free of costs.
23. File be consigned to record room along with a copy of this Judgment.

(Justice Sangita Dhingra Sehgal)
President

(Bimla Kumari)
Member (Judicial)

TRI